

**CHAPTER xxiii.**

An Act to define the boundary between the limits of the
Hornsey Gas Company and the Gas Light and Coke
Company for the supply of gas and for other purposes.
[19th July 1916.]

WHEREAS by the Hornsey Gas Act 1866 (in this Act called "the Act of 1866") the Hornsey Gas Company (in this Act called "the Company") were incorporated and were authorised (amongst other things) to manufacture and supply gas within the limits in that Act defined:

And whereas by the Hornsey Gas Order 1884 confirmed by the Gas Orders Confirmation (No. 2) Act 1884 (in this Act called "the Order of 1884") the limits of the Company for the supply of gas were extended and by that Order and the Hornsey Gas Order 1902 confirmed by the Gas Orders Confirmation (No. 2) Act 1902 (in this Act called "the Order of 1902") the Company were empowered to raise further capital and to construct and maintain additional gasworks and other provisions were made with reference to the undertaking of the Company:

And whereas it is expedient to define the boundary between the respective limits for the supply of gas of the Company and the Gas Light and Coke Company (in this Act called "the Gas Light Company"):

And whereas it is expedient to authorise the manufacture of residual products of gas on a certain limited portion of the existing gasworks of the Company:

And whereas it is expedient to empower the Company to establish certain funds for the benefit of the servants of the Company and other purposes and that such other provisions be

A.D. 1916. — made with respect to the Company and their undertaking as are in this Act contained:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Hornsey Gas Act 1916 and the Hornsey Gas Act 1866 and the Hornsey Gas Order 1884 and the Hornsey Gas Order 1902 and this Act may be cited together as the Hornsey Gas Acts and Orders 1866 to 1916.

Incorporation
of Acts.

2. The following Acts are hereby incorporated with this Act (namely) the Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings And—

The expressions "the limits of supply" and "the limits of supply of the Company" mean the area within which the Company are by the Hornsey Gas Acts and Orders 1866 to 1916 authorised to supply gas;

The expression "the undertaking" means the undertaking of the Company as authorised by the Hornsey Gas Acts and Orders 1866 to 1916;

The expression "British thermal units" means British thermal units gross per cubic foot of gas;

The expression "the directors" means the directors of the Company.

LIMITS OF COMPANY AND GAS LIGHT COMPANY IN PARISH
OF HORNSEY.

A.D. 1916.

4. The boundary between the limits of supply of the Company and the limits for the supply of gas of the Gas Light Company shall as from the passing of this Act be in accordance with and follow the line marked in red colour on the map signed in quadruplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons one copy at the office of the Company and one copy at the office of the Gas Light Company.

Boundary
between
limits of
Company
and Gas
Light Com-
pany.

5. From and after the passing of this Act those parts of the parish of Hornsey which are situate southward of the boundary line referred to in the section of this Act of which the marginal note is "Boundary between limits of Company and Gas Light Company" shall cease to be within the limits of supply of the Company and all rights and obligations of the Company with respect to the supply of gas in such last-mentioned parts of the said parish shall cease and determine.

Rights of
Company in
Hornsey.

6. From and after the passing of this Act those parts of the parish of Hornsey which are situate northward of the boundary line referred to in the section of this Act of which the marginal note is "Boundary between limits of Company and Gas Light Company" shall cease to be within the limits of supply of the Gas Light Company and all rights and obligations of that company with respect to the supply of gas in such last-mentioned parts of the said parish shall cease and determine but those parts of the said parish which are situate southward of the said boundary line shall continue to be within the limits of supply of the Gas Light Company.

Rights of
Gas Light
Company in
Hornsey.

MANUFACTURE OF RESIDUALS.

7.—(1) The Company may on the lands described in the schedule to this Act and now forming part of their existing gasworks work up manufacture and convert the residual products arising directly or indirectly from the manufacture of gas by them.

Manufacture
of residuals.

A.D. 1916.

(2) Section 27 of the Order of 1884 and the proviso to section 22 of the Order of 1902 shall cease to apply to the lands referred to in this section.

CALORIFIC POWER AND TESTING.

Testing-places.

8. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-places shall be (1) a testing-place which shall be provided by the Company on some part of the lands described in the schedule to the Act of 1866 or the Orders of 1884 or 1902 within three months after the passing of this Act and (2) a testing-place to be provided by the mayor aldermen and burgesses of the borough of Hornsey on some part of their lands situate between Tottenham Lane and Glebe Road in the said borough.

Testing for calorific power.

9.—(1) Within six months after the passing of this Act the Company shall provide at each of the prescribed testing-places apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific value of gas.

(2) The gas supplied by the Company shall when tested in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees be of a calorific power of five hundred and forty British thermal units and that power is in this Act referred to as “the standard calorific power.”

(3) From and after the provision of the apparatus referred to in subsection (1) of this section the provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Company and sections 28 to 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

Provisions as to testing for calorific power.

10. Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power by more than five per centum a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence. A.D. 1916.

11. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power by more than seven and a half per centum they shall be liable to the following penalties in respect of any deficiency beyond such last-mentioned margin (that is to say):— Penalties for deficient calorific power.

If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds:

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

SPECIAL PURPOSES FUND.

12.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund." Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the

A.D. 1916. — general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the Company at the passing of this Act shall be credited to the special purposes fund and section 20 of the Order of 1884 is hereby repealed.

BENEFIT FUND.

Benefit fund.

13.—(1) The directors may if they think fit in respect of any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding one halfpenny per one thousand cubic feet of gas supplied by the Company during such year to a fund to be called "the benefit fund":

Provided that the amount of the sums so appropriated and for the time being standing to the credit of the benefit fund shall not at any time exceed the amount which the directors would have been entitled to appropriate to the benefit fund out of the revenue of the Company at the rate aforesaid during the then preceding five years.

(2) The directors may out of the benefit fund grant a gratuity of any sum or make pension or other allowances payments or benefits to any of the weekly servants of the Company who may be disabled or injured in or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Company or to the widow or family or dependents of any such servant and on such terms and conditions as to contributions by such servants or otherwise as the directors may think fit. Provided that it shall not be obligatory on any present or future servant of the Company to become a party to any arrangement made under this Act for securing to him or his widow family or dependents any gratuity pension or other allowance payment or benefit.

(3) The benefit fund shall be applicable for the purposes of this Act and for no other purpose whatsoever and no such gratuity pension allowance payment or benefit as is mentioned in this section (other than sick pay) shall be granted or paid

to any such servant widow family or dependent otherwise than out of the benefit fund. A.D. 1916.

(4) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such servants or the widow family or any dependent of any such servant gratuities pension or other allowances payments or benefits as aforesaid and may make payments out of the benefit fund for the purpose of any such agreement.

(5) The moneys forming the benefit fund or any portion thereof shall be invested in securities in which trustees are by law authorised to invest or in such other securities as may be authorised by resolution of the Company.

(6) Every gratuity pension or other allowance payment or benefit secured made or granted under this Act shall be payable to or in trust for the servant person widow or dependent to whom the same shall be granted and shall not be assignable or chargeable with the debts or other liabilities of such servant person widow or dependent as the case may be.

(7) If the Company shall under the powers of this Act make any scheme involving contributions by their servants such scheme shall not come into operation until such scheme shall have been registered as the rules of a society under the Friendly Societies Act 1896 and any amendment or variation of such scheme shall not be valid until so registered and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply (A) as if such scheme were the rules of a society to which the said Act of 1896 applies (B) as if the Company were the trustees of such society (c) as if the benefit fund were the funds of such society and (D) as if persons contributing to and participating in the benefit of such fund were the members of such society.

CREATION OF CAPITAL NOT ENTITLED TO DIVIDEND.

14. The Company may apply for or towards the general purposes of the undertaking to which capital is properly applicable the sum of twenty-five thousand pounds being part of the moneys now in the hands of the Company on revenue account and such moneys shall be created as and form a separate class of the capital of the Company to be known as the "B" capital and shall not be treated as part of the capital of the Company entitled to dividend. Creation of capital not entitled to dividend.

A.D. 1916.

MISCELLANEOUS.

Power to
directors to
make dona-
tions sub-
scriptions &c.

15. The directors may subscribe or make donations to any fund raised in any case of national emergency or to infirmaries or hospitals which are within the limits of supply for the time being of the Company and to convalescent homes and to other institutions and objects to any exhibitions and to the benevolent and sick funds of the employees of the Company and may subject to the provisions of this Act for any of those purposes apply the funds and revenues of the Company.

Benefits to
employees
injured and
dependents
of employees
killed &c. in
war.

16.—(1) The directors may subject to the provisions of this Act grant such gratuities or make such pension or other allowance or payment as they may think fit out of the funds and revenues of the Company to any employee of the Company disabled injured or incapacitated while serving with any of His Majesty's forces in war or in the event of any such employee being killed in action or dying of wounds injuries or disease received or contracted whilst in such service to the widow family or any dependent of any such employee.

(2) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee or the widow family or any dependent of any such employee any gratuity pension or other allowance or payment as aforesaid and may subject to the provisions of this Act make payments out of the revenues of the Company for that purpose.

Limiting
certain
payments.

17. The total amount of the payments made by the directors in any year out of the funds and revenues of the Company under the provisions of the sections of this Act of which the marginal notes respectively are "Power to directors to make donations subscriptions &c." and "Benefits to employees injured and dependents of employees killed &c. in war" shall not exceed a sum equal to one halfpenny per thousand cubic feet of gas supplied by the Company during such year.

Power to
grant pen-
sions &c.

18. The directors may in addition to forming a benefit fund under the section of this Act of which the marginal note is "Benefit fund" grant pensions and retiring or superannuation allowances to officers and servants (other than weekly servants) of the Company and for that purpose may apply the funds and revenues of the Company Provided that the total amount of the payments made by the directors in any year under the provisions of this section shall not exceed an amount equal to

one halfpenny per thousand cubic feet of gas supplied by the Company during such year. A.D. 1916.

19. The Company may enter into and carry into effect agreements with any company body or person for the purchase of gas in bulk by the Company for such price and on such terms and conditions and for such period as may be agreed upon and any gas so purchased may be used by the Company for distribution within their limits of supply and otherwise for the purposes of the undertaking. Purchase of gas in bulk.

20. Notwithstanding anything in the Companies Consolidation Act 1845 the attorney of any shareholder or stockholder of the Company duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Company at the same time as the instrument appointing the proxy. Appointment of proxies.

21. Notwithstanding anything contained in the Companies Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any share or stock in the capital of the Company any one of those persons may vote at any meeting at which holders of similar shares or stock are entitled to vote either personally or by proxy in respect of the share or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the share or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any share stands shall for the purposes of this section be deemed joint holders thereof. Joint holders.

22.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply. Prepayment meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the

A.D. 1916. — prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Saving as to penalties.

23. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Pipes &c. between mains and meters.

24. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over :

A.D. 1916.

- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

25. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to

Power to lay pipes in private streets.

A.D. 1916. — public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Hornsey Gas Acts and Orders 1866 to 1916:

Provided that the mayor aldermen and burgesses of the borough of Hornsey shall be deemed in addition to any other persons to be persons having the control or management of any such street for the purpose of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes:

Provided further that the Company shall not without the consent of the Great Northern Railway Company (in this section referred to as "the railway company") exercise the powers of this section with respect to any street or road belonging to or under the control or management of the railway company. But such consent shall not be unreasonably withheld and if any difference shall arise between the railway company and the Company as to whether such consent is in any case unreasonably withheld such difference shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the Board of Trade.

As to mode
of cutting off
supplies.

26.—(1) In any case in which the Company are by virtue of any enactment relating to the undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall re-connect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847:

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

27. In any case in which in consequence of any default on the part of the occupier of any premises the Company have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

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Expenses of re-connecting discontinued supply.

28. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Company a supply or the continuance of a supply of gas for premises having a supply of gas from an installation other than that of the Company unless he shall have previously agreed to pay the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Supply in cases of separate supply.

29. The power to enter premises and to remove pipes meters and fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Removal of fittings where gas supply discontinued.

30. Every consumer of gas supplied by the Company who uses a gas engine or any other apparatus or machinery in which gas is used shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping in proper repair such anti-fluctuator and valve the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the

Anti-fluctuators.

A.D. 1916. — Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Fittings on
hire exempt
from distress
&c.

31. All fittings let for hire by the Company under any statutory powers shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Consumers'
notice before
removing.

32. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Notice to dis-
continue
supply of
gas.

33. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Refusal of
supply to
persons in
debt for
other prem-
ises.

34. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

35. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or

of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company. A.D. 1916.
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36. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or other pipes or to interfere with any street beyond their limits of supply. Supply in
bulk.

37. For the protection of the mayor aldermen and burgesses of the borough of Hornsey (in this section called "the corporation") the following provisions shall unless otherwise agreed between the Company and the corporation apply and have effect (namely):— For pro-
tection of
Hornsey
Corporation.

(1) In the exercise of the powers conferred upon the Company by the section of this Act the marginal note whereof is "Manufacture of residuals" the Company shall from time to time adopt and use none but the most approved processes and methods of manufacturing working up and converting residual products and shall carry on the same so as not to cause any nuisance or annoyance to the residents in the neighbourhood:

(2) The Company shall not without the consent of the corporation cause or allow any effluent arising in the working up manufacture or conversion of residual products to pass directly or indirectly into any part of the River Moselle which is within the borough of Hornsey (in this section called "the borough") nor into any storm water outfall culvert or sewer within the borough or into any drain connecting with such storm water outfall culvert or sewer. If the Company commit a breach of any of the provisions of this subsection they shall be liable to a penalty of fifty pounds and to a further penalty of five pounds for every day during which such breach shall continue:

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(3) The price to be charged by the Company to the corporation for gas supplied to public lamps in the borough for a period of ten years from the passing of this Act shall be the net cost of manufacture :

(4) The Company before supplying gas to any public lamps in the borough which are now supplied by the Gas Light Company shall at their own expense make all alterations thereto and in any fittings thereof which may be necessary to adapt such lamps and fittings for the supply of gas thereto by the Company. All works which it may be necessary to execute in any street within the borough for the purpose of connecting such lamps with the mains pipes and works of the Company or for disconnecting such lamps from the mains pipes and works of the Gas Light Company shall be executed at such points as shall be agreed between the corporation and the Company or as in default of agreement may be determined by arbitration so as to avoid any undue interference with the streets in the borough and all such works shall be executed in accordance with and subject to the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes :

(5) If any difference shall arise between the Company and the corporation touching this section or anything to be done thereunder such difference shall be settled by an engineer as arbitrator agreed upon between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

For protection of Wood Green Urban District Council.

38. The following provisions for the protection and benefit of the Wood Green Urban District Council (in this section called "the council") shall except so far as may be otherwise agreed between the Company on the one hand and the council on the other hand apply and have effect (that is to say) :—

(1) In the exercise of the powers conferred upon the Company by the section of this Act the marginal note whereof is "Manufacture of residuals" the Company shall from time to time adopt and use none but the most approved processes and methods of

manufacturing working up and converting residual products and shall carry on the same so as not to cause any nuisance or annoyance to the residents in the neighbourhood:

- (2) The Company shall not cause or allow any effluent arising in the manufacture of gas or in the working up manufacture or conversion of residual products to pass directly or indirectly into any drain or sewer the contents of which pass directly or indirectly into the sewers of the Tottenham and Wood Green Joint Drainage Committee:
- (3) The Company shall not cause or allow any such effluent to pass directly or indirectly into any stream or watercourse or into any other drain or sewer vested in the council unless they shall have freed such effluent from all noxious matter which would affect or deteriorate the purity or quality of the water in any stream or watercourse in or abutting upon the urban district of Wood Green:
- (4) Any person authorised in that behalf by the council and producing his authority on being required to do so by the Company may at any time enter upon any lands and works of the Company and inspect the sewers and drains thereon for the purpose of ascertaining whether the provisions of this section are duly complied with and may take samples of any such effluent passing or intended to pass into any such sewer drain stream or watercourse and the Company shall afford to such person reasonable facilities for the purposes of this subsection:
- (5) If the Company fail or neglect to comply with any of the provisions contained in this section they shall be liable to a penalty of twenty pounds and to a further penalty of twenty pounds for every day on which such failure or neglect shall continue after the council shall have given notice of such failure or neglect to the Company or have left the same at the Company's principal office and any penalty under this section may be recovered in a summary manner:
- (6) If any question or difference shall arise under this section between the Company on the one hand and the council on the other hand it shall be determined

A.D. 1916.
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by an arbitrator to be appointed on the application of either party by the Local Government Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of Tot-
tenham and
Wood Green
Joint Drain-
age Com-
mittee and
Tottenham
Urban Dis-
trict Council.

39. The following provisions for the protection and benefit of the Tottenham and Wood Green Joint Drainage Committee (in this section called "the committee") and of the Tottenham Urban District Council (in this section called "the council") shall except so far as may be otherwise agreed between the Company on the one hand and the committee and the council on the other hand apply and have effect (that is to say):—

- (1) The Company shall not cause or allow any effluent arising in the manufacture of gas or in the working up manufacture or conversion of residual products to pass directly or indirectly into any drain or sewer the contents of which pass directly or indirectly into the sewers of the committee :
- (2) The Company shall not cause or allow any such effluent to pass directly or indirectly into any stream or watercourse or into any drain or sewer vested in the council unless they shall have freed such effluent from all noxious matter which would affect or deteriorate the purity or quality of the water in any stream or watercourse in or abutting upon the urban district of Tottenham :
- (3) Any person authorised in that behalf by the committee or by the council and producing his authority on being required to do so by the Company may at any time enter upon any lands and works of the Company and inspect the sewers and drains thereon for the purpose of ascertaining whether the provisions of this section are duly complied with and may take samples of any such effluent passing or intended to pass into any such sewer drain stream or watercourse and the Company shall afford to such person reasonable facilities for the purposes of this subsection :
- (4) If the Company fail or neglect to comply with any of the provisions contained in this section they shall be liable to a penalty of twenty pounds and to a further penalty of twenty pounds for every day on which such failure or neglect shall continue after the

committee or the council shall have given notice of such failure or neglect to the Company or have left the same at the Company's principal office and any penalty under this section may be recovered in a summary manner : A.D. 1916.

- (5) If any question or difference shall arise under this section between the Company on the one hand and the committee and the council or either of them on the other hand it shall be determined by an arbitrator to be appointed on the application of either party by the Local Government Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

40. Nothing in this Act shall extend to interfere with take away abridge or prejudicially affect any existing right power authority jurisdiction or privilege of the Lee Conservancy Board. For protection of Lee Conservancy Board.

41. Proceedings for the recovery of any demand made under the authority of this Act or any other Act or any Order relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

42. Section 43 of the Order of 1884 is hereby repealed and save as otherwise by this Act expressly provided all offences against this Act or any other Act or any Order relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

43. The Company may from time to time apply for or towards all or any of the purposes of this Act and for or towards the general purposes of the undertaking to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under and by virtue of the Act of 1866 the Order of 1884 or the Order of 1902 or which Power to apply funds.

A.D. 1916. — may be in their possession or under their control and which are not required for the purposes to which they are by that Act or those Orders made specially applicable:

Provided that the powers conferred by this section shall not be exercised by the Company during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Saving for
general Acts.

44. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of Act.

45. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Act.

A.D. 1916.

LAND FOR CONVERSION OR MANUFACTURE OF RESIDUAL
PRODUCTS.

A piece of land in the parish of Wood Green in the county of Middlesex now belonging or reputed to belong to and in the occupation of the Company and which piece of land forms part of the Company's existing gasworks and contains by admeasurement 2,000 square yards or thereabouts and is bounded on the north by the southern termination of Western Road the dwelling-house and garden known as No. 89 Western Road and by an imaginary straight line drawn from the south-eastern corner of the said garden to the northern extremity of the eastern wall of the building on the said gasworks known as the No. 3 Retort House on the east by the eastern wall of the said retort house on the south by the southern wall of the said retort house and by an imaginary straight line drawn in a westerly direction from the south-western corner of the said retort house to a point in the wall forming the western boundary of the said gasworks such point being 60 yards or thereabouts measured in a northerly direction along the said wall from the boundary between the parishes of Hornsey and Wood Green and on the south-west and west by the said boundary wall.

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